

VCU333390 Guerrero, Ana vs. Stillwater Property & Casualty Insurance Company

County: tulare

Division: Civil Law and Motion

Department: 2

Hearing date: 2026-08-25

Motion: Defendant's Motion to Compel Initial Discovery as to (1) Form Interrogatories, Set One; (2) Form Interrogatories, Set Two; (3) Special Interrogatories, Set One; and (4) Requests for Production of Documents, Set One; Sanctions

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Re: Guerrero, Ana vs. Stillwater Property & Casualty Insurance Company

Case No.: VCU333390

Date: August 25, 2026

Time: 8:30 A.M.

Dept. 2-The Honorable Bret D. Hillman

Motion: Defendant's Motion to Compel Initial Discovery as to (1) Form Interrogatories, Set One; (2) Form Interrogatories, Set Two; (3) Special Interrogatories, Set One; and (4) Requests for Production of Documents, Set One; Sanctions

Tentative Ruling: (1) through (4): To grant the motions and order responses within thirty (30) days after service of the notice of this ruling for this motion; to impose sanctions totaling \$690 against Plaintiff and counsel of record, jointly and severally, due within thirty (30) days after service of the notice of this ruling for this motion; Defendant shall give notice.

Facts Common to (1) through (4)

On May 4, 2026, in this first-party insurance breach of contract lawsuit, Defendant served (1) Form Interrogatories, Set One, (2) Form Interrogatories, Set Two, (3) Special Interrogatories, Set One, and (4) Requests for Production of Documents electronically on Plaintiff's counsel.

Responses were due no later than June 5, 2026.

As of the date of filing these motions on June 24, 2026, no responses have been received.

Defendant seeks to compel initial responses to the above, without objections, and for sanctions of \$1,410 per motion consisting of 6 hours (incurred and anticipated) at the rate of \$225 per hour plus a \$60 filing fee as to each motion.

No opposition appears to have been filed.

(1), (2) and (3) Interrogatories

Based on Plaintiff's failure to respond to the first and second sets of form and first set of special interrogatories, the Court orders under, Code of Civil Procedure section 2030.290(a), that Plaintiff provide full and complete verified responses without objection to Defendant's first and second sets of form interrogatories and first set of special interrogatories, within thirty (30) days after service of the notice of this ruling for this motion. Defendant shall give notice.

(3) Requests for Production

Based on Plaintiff's failure to respond to the first set requests for production of documents, the Court orders under, Code of Civil Procedure section 2031.300(a) that Plaintiff provide full and complete verified responses without objection to Defendant's first set of requests for production of documents, within thirty (30) days after service of the notice of this ruling for this motion. Defendant shall give notice.

Sanctions

Under Code of Civil Procedure sections 2030.290(c) (Interrogatories) and 2031.300(c) (Requests for Production), the Court imposes sanctions. However, the Court notes there is no meet and confer requirement and all that is necessary to obtain the relief requested on this motion to compel initial responses is that the other party failed to respond within the designated time.

Therefore, the Court will award one half-hour as to each motion at the stated rate, plus \$240 in filing fees, for a total of \$690 against Plaintiff and counsel of record, jointly and severally, due within thirty (30) days after service of the notice of this ruling for this motion. Defendant shall give notice.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.